《貨幣兌換商條例》
(第 34 章)
Money Changers Ordinance
(Cap. 34)

版本日期
Version date
24.8.2025

經核證文本
Verified Copy

(《法例發布條例》(第 614 章) 第 5 條)
(Legislation Publication Ordinance (Cap. 614), section 5)

如某內頁的頁底標明：
- “經核證文本”；及
- 以下列表顯示的該頁的最後更新日期，

該頁所載條文即視作於上述 “版本日期” 的正確版本。

此文本所載條文，如並非正在實施，會有附註作說明。

A provision is presumed to be correctly stated as at the above version date if it is on a page marked at the bottom with:
- the words “Verified Copy”; and
- the last updated date shown in this table for the page.

Any provision included in this copy that is not in force is marked accordingly.

條文 Provision	頁數 Page number	最後更新日期 Last updated date
主體 Main	1—20	22.4.2021
附表 1 Schedule 1	S1-1—S1-4	29.11.2020
附表 2 Schedule 2	S2-1—S2-2	24.8.2025
附表 3 Schedule 3	S3-1—S3-2	24.8.2025

尚未實施的條文 / 修訂 ——
尚未實施的條文及修訂的資料，可於「電子版香港法例」(https://www.elegislation.gov.hk) 閱覽。

Provisions / Amendments not yet in operation —
Please see Hong Kong e-Legislation (https://www.elegislation.gov.hk) for information of provisions and amendments not yet in operation.

制定史

本為 1985 年第 9 號 —— 1985 年編正版，1986 年第 27 號，1989 年第 9 號，1990 年第 3 號，1995 年第 49 號，1995 年第 612 號法律公告，1996 年第 (C)38 號法律公告 (中文真確本)，1996 年第 171 號法律公告，2000 年第 65 號，2018 年第 5 號編輯修訂紀錄，2020 年第 21 號，2021 年第 2 號編輯修訂紀錄，2025 年第 31 號

Enactment History

Originally 9 of 1985 — R. Ed. 1985, 27 of 1986, 9 of 1989, 3 of 1990, 49 of 1995, L.N. 612 of 1995, L.N. (C) 38 of 1996 (Chinese authentic version), L.N. 171 of 1996, 65 of 2000, E.R. 5 of 2018, 21 of 2020, E.R. 2 of 2021, 31 of 2025

《貨幣兌換商條例》

(第 34 章)

目錄

條次		頁次
1.	簡稱	1
2.	釋義	1
3.	本條例的適用範圍	3
4.	貨幣兌換商須提供交易單據	5
5.	撤銷的權利	9
6.	貨幣兌換商須展示匯率	9
7.	兌換其他貨幣	11
8.	宣傳匯率	13
9.	行政長官可修訂附表	15
10.	虛假或誤導性的陳述	15
11.	刑事法律責任	17
附表 1	交易單據	S1-1
附表 2	准許陳述	S2-1
附表 3	訂明貨幣	S3-1

Money Changers Ordinance

(Cap. 34)

Contents

Section		Page
1.	Short title	2
2.	Interpretation	2
3.	Application of Ordinance	4
4.	Money changer to provide transaction note	6
5.	Right to rescind	10
6.	Money changer to display rates	10
7.	Exchange of other currencies	12
8.	Advertising rates of exchange	14
9.	Chief Executive may amend Schedules	16
10.	False or misleading representations	16
11.	Criminal liability	18
Schedule 1	Transaction Note	S1-2
Schedule 2	Permitted Statements	S2-2
Schedule 3	Prescribed Currencies	S3-2

本條例旨在就貨幣兌換商披露兌換交易的匯率以及為此而取得同意等事宜訂定條文。

(由 1989 年第 9 號第 2 條修訂)

[1985 年 4 月 1 日] *1985 年第 57 號法律公告*

(格式變更 ——2018 年第 5 號編輯修訂紀錄)

1. 簡稱

本條例可引稱為《貨幣兌換商條例》。

(由 1989 年第 9 號第 3 條修訂)

2. 釋義

在本條例中，除文意另有所指外 ——

交易單據 (transaction note) 指兌換交易的單據；*(由 1989 年第 9 號第 4 條增補)*

兌換交易 (exchange transaction) 指貨幣兌換商與另一人之間作出的不同貨幣的兌換的交易；

告示牌 (board) 指本條例規定用作展示淨匯率的工具，並且包括電視螢光屏幕；*(由 1989 年第 9 號第 4 條增補)*

酒店 (hotel) 具有《酒店東主條例》(第 158 章) 第 2 條給予該詞的涵義；

淨匯率 (net rate of exchange) 指當貨幣兌換商買入或賣出港元時，貨幣兌換商在扣減所有收費及佣金後，願意用以兌換顧客所提供或需求的外幣而以港元計算的每個外幣單位的淨價格；*(由 1989 年第 9 號第 4 條增補)*

貨幣 (currency) 包括支票及旅行支票；

貨幣兌換商 (money changer) 指在香港進行貨幣兌換業務的人，而其業務並非 ——

To provide for the disclosure by money changers of exchange rates on exchange transactions and for the obtaining of consent thereto.

(Amended 9 of 1989 s. 2)

[1 April 1985] *L.N. 57 of 1985*

(Format changes—E.R. 5 of 2018)

1. Short title

This Ordinance may be cited as the Money Changers Ordinance.

(Amended 9 of 1989 s. 3)

2. Interpretation

In this Ordinance, unless the context otherwise requires—

board (告示牌) means a device used for displaying the net rates of exchange required under this Ordinance and includes a video display screen; *(Added 9 of 1989 s. 4)*

buy (買入) means, in relation to a Hong Kong dollar exchange transaction, to buy foreign currency from a customer and includes an offer to buy; *(Added 9 of 1989 s. 4)*

currency (貨幣) includes a cheque and a traveller's cheque;

exchange transaction (兌換交易) means a transaction between a money changer and another person relating to the exchange of different currencies;

hotel (酒店) has the meaning assigned to it by section 2 of the Hotel Proprietors Ordinance (Cap. 158);

money changer (貨幣兌換商) means a person who carries on in Hong Kong the business of exchanging currencies, not being a business which—

(a) 主要為方便入住該人所管理的酒店的顧客而提供和經營的服務；

(b) 在酒店的處所內進行；及

(c) 只包括由該人購入其他貨幣以兌換港幣的交易；

買入 (buy) 就任何一宗港元兌換交易而言，指向顧客買入外幣，包括向顧客要約買入外幣；*(由 1989 年第 9 號第 4 條增補)*

賣出 (sell) 就任何一宗港元兌換交易而言，指向顧客賣出外幣，包括向顧客要約賣出外幣；*(由 1989 年第 9 號第 4 條增補)*

簽署 (sign) 包括加蓋圖章或標記。*(由 1989 年第 9 號第 4 條增補)*

(編輯修訂——2018 年第 5 號編輯修訂紀錄)

3. 本條例的適用範圍

(1) 本條例不適用於——

(a) 《銀行業條例》(第 155 章) 第 2 條所指的認可機構；或 *(由 1995 年第 49 號第 53 條代替)*

(b) *(由 1995 年第 49 號第 53 條廢除)*

(c) 所提供兌換的貨幣款額超過港幣 $100,000 或其等值的任何兌換交易。

(a) is a service provided and operated by that person primarily for the convenience of guests of an hotel managed by him;

(b) is carried on within the hotel premises; and

(c) consists solely of transactions for the purchase by that person of other currencies in exchange for Hong Kong currency;

net rate of exchange (淨匯率) means when a money changer buys or sells Hong Kong dollars, the net price per unit of foreign currency, expressed in Hong Kong dollars, that the money changer is prepared to exchange for the foreign currency tendered or requested by the customer, after deducting all charges and commissions; *(Added 9 of 1989 s. 4)*

sell (賣出) means, in relation to a Hong Kong dollar exchange transaction, to sell foreign currency to a customer and includes an offer to sell; *(Added 9 of 1989 s. 4)*

sign (簽署) includes to affix a chop or mark; *(Added 9 of 1989 s. 4)*

transaction note (交易單據) means a note of an exchange transaction. *(Added 9 of 1989 s. 4)*

3. Application of Ordinance

(1) Nothing in this Ordinance shall apply to—

(a) an authorized institution within the meaning of section 2 of the Banking Ordinance (Cap. 155); or *(Replaced 49 of 1995 s. 53)*

(b) *(Repealed 49 of 1995 s. 53)*

(c) an exchange transaction where the amount of the currency tendered for exchange exceeds the sum of $100,000 in Hong Kong currency or the equivalent of such sum.

(2) 行政長官可藉憲報公告，修訂第 (1)(c) 款所指明的金額。 *（由 2000 年第 65 號第 3 條修訂）*

4. 貨幣兌換商須提供交易單據

(1) 貨幣兌換商在將任何貨幣交給顧客，以兌換顧客所提供的貨幣而完成一宗兌換交易前，必須 ——

(a) 按附表 1 訂明的格式，以可閱字迹填具一式兩份的交易單據，單據內須載有本條所規定或准許的內容，並須以阿拉伯數字正確列明兌換交易的細節，並以貨幣兌換商通用的簡寫示明貨幣的種類；

(b) 在交易單據上簽署；

(c) 在切實可行範圍內，向顧客解釋該份交易單據的內容，並指出在交易單據內所列兌換交易的每項細節；及

(d) 請求顧客在交易單據正本的正面預留給顧客簽署的位置簽署，而除非其簽署的副本已記錄在複本上，否則顧客須在交易單據複本的正面預留給顧客簽署的位置簽署。

(2) 第 (1)(a) 款所提述的細節為 ——

(a) 交易日期；

(b) 顧客所提供的貨幣種類；

(c) 顧客所提供的貨幣款額；

(d) 淨匯率，在說明淨匯率時，不得提述任何收費或佣金；

(e) 將會給予顧客的貨幣的等值款額；及

(2) The sum specified in subsection (1)(c) may be amended by the Chief Executive by notice in the Gazette. *(Amended 65 of 2000 s. 3)*

4. Money changer to provide transaction note

(1) A money changer, before completing an exchange transaction by handing any currency to a customer in exchange for currency tendered by the customer, shall—

(a) legibly make out in duplicate a transaction note in the form prescribed in Schedule 1, with such inclusions as are required or permitted by this section, by correctly completing the details of the exchange transaction by using Arabic numerals and an abbreviation commonly used by money changers to signify the type of currency;

(b) sign the transaction note;

(c) explain, in so far as is practicable, the transaction note to the customer and indicate each detail of the exchange transaction set out in the transaction note; and

(d) request the customer to sign the front of the original transaction note in the place reserved for his signature and, unless a copy of the signature is recorded on the duplicate, to sign the front of the duplicate transaction note in the place reserved for his signature.

(2) The details referred to in subsection (1)(a) are—

(a) the date of the transaction;

(b) the type of currency tendered by the customer;

(c) the amount of currency tendered by the customer;

(d) the net rate of exchange, which shall be stated without reference to any charge or commission;

(e) the equivalent amount of the currency to be issued to the customer; and

(f) (凡顧客所提供的貨幣超過一種) 經兌換後顧客會獲發給的貨幣的總款額。

(3) 貨幣兌換商在其所使用的交易單據表格內，須載有貨幣兌換商的中英文姓名或名稱、中英文地址及電話號碼，表格內並可載有 ——

(a) 單據編號；

(b) 交易號碼；

(c) 以記錄顧客身分證據和該項證據的細節的預留位置；及

(d) 具附表 2 所列表格的效用的陳述。

(4) 貨幣兌換商不得在交易單據內載有任何並非本條例所授權作出的陳述。

(5) 如貨幣兌換商賣出多於一種貨幣給一名顧客，則貨幣兌換商須就每一種賣出的貨幣，發出一份獨立交易單據。

(6) 貨幣兌換商須將交易單據所示須給予顧客的某貨幣的等值總款額交給顧客，而不得作任何扣減。

(7) 貨幣兌換商將顧客兌換所得的貨幣交給顧客時，須將交易單據的正本一併發給顧客。

(8) 貨幣兌換商須將填妥的交易單據複本保留至少 12 個月，並須在警務人員提出要求時，出示複本以供查閱和複製。

(f) where more than one currency is tendered by the customer, the total amount of the exchanged currency to be issued to the customer.

(3) A money changer shall include in the form of transaction note used by him the money changer's name, address and telephone number both in English and Chinese and may include in the form—

(a) a serial number for the note;

(b) a transaction number;

(c) provision for evidence of the customer's identification to be recorded and details of that evidence; and

(d) statements to the effect of the form set out in Schedule 2.

(4) A money changer shall not include in a transaction note any statement other than a statement authorized by this Ordinance.

(5) If a money changer sells more than one type of currency to a customer, the money changer shall issue a separate transaction note for each currency sold.

(6) A money changer shall hand over to the customer the total of the equivalent amount of the currency shown in the transaction note as the currency to be issued to the customer without any deduction.

(7) A money changer shall, on handing over the exchanged currency, issue the original of a transaction note to the customer.

(8) A money changer shall retain the duplicate copy of a completed transaction note for not less than 12 months and shall produce the duplicate for inspection and copying on demand by a police officer.

(9) 在不損害第 5 條的原則下，顧客可在貨幣兌換商藉遵照本條規定並將顧客兌換所得的貨幣悉數交給顧客以完成交易之前，隨時拒絕繼續進行兌換交易。

(10) 如顧客根據第 (9) 款拒絕繼續進行兌換交易，貨幣兌換商須立即將顧客所提供作兌換交易的貨幣交回顧客，而不得作任何扣減。

(11) 貨幣兌換商違反第 (1)、(3)、(4)、(5)、(6)、(7)、(8) 或 (10) 款，或沒有遵從根據第 (8) 款提出的要求，即屬犯罪；如屬第一次定罪，可處第 1 級罰款，如屬第二次或其後定罪，可處第 2 級罰款及監禁 6 個月。*(編輯修訂——2021 年第 2 號編輯修訂紀錄)*

(由 1989 年第 9 號第 5 條代替)

5. 撤銷的權利

凡貨幣兌換商在任何一宗兌換交易中違反第 4 條的規定，該宗交易的另一方可以該貨幣兌換商如此違例為理由，在不損害任何其他權利或補救辦法的情況下，在交易日期後 3 天內，撤銷該宗交易。

(由 1989 年第 9 號第 6 條修訂)

6. 貨幣兌換商須展示匯率

(1) 如貨幣兌換商願意進行附表 3 所訂明的任何貨幣與港元的兌換交易，則貨幣兌換商須設置一塊告示牌，展示他向顧客要約買入和賣出有關貨幣的當時淨匯率。

(9) Without derogation from section 5, a customer may, at any time before the money changer completes the transaction by complying with this section and handing the total of the exchanged currency to the customer, refuse to proceed with an exchange transaction.

(10) If a customer refuses to proceed with an exchange transaction under subsection (9), the money changer shall immediately hand back to the customer the currency tendered by the customer for the exchange transaction without any deduction.

(11) A money changer who contravenes subsection (1), (3), (4), (5), (6), (7), (8) or (10) or who fails to comply with a demand under subsection (8) commits an offence and is liable to a fine at level 1 for a first offence and to a fine at level 2 and to imprisonment for 6 months for a second or subsequent offence. *(Amended E.R. 2 of 2021)*

(Replaced 9 of 1989 s. 5)

5. Right to rescind

Where a money changer contravenes section 4 in respect of an exchange transaction the other party to the transaction may, on the ground of such contravention and without prejudice to any other right or remedy, rescind the transaction within 3 days after the date thereof.

(Amended 9 of 1989 s. 6)

6. Money changer to display rates

(1) If a money changer is prepared to enter into a Hong Kong dollar exchange transaction for any of the currencies prescribed in Schedule 3, the money changer shall maintain a board displaying the current net rate of exchange offered by him to customers for both buying and selling the currencies.

(2) 如貨幣兌換商設置多於一塊展示淨匯率的告示牌，則他須在所有告示牌上展示相同的淨匯率資料。

(3) 貨幣兌換商須 ——

(a) 提供一塊面積夠大的告示牌，以顧客清楚可見和可閱的方式展示淨匯率；及

(b) 將告示牌放置在一個光線充足而顧客視線無阻的地方。

(4) 貨幣兌換商在告示牌上展示的淨匯率，須是對顧客優惠最少的淨匯率，但貨幣兌換商可向顧客要約給予沒有在告示牌上展示但對顧客較優惠的淨匯率。

(5) 貨幣兌換商須在告示牌上 " 買入 " 及 " 賣出 " 的標題下展示買入和賣出的淨匯率，並在根據第 7(1) 條發出的任何單據上開列該淨匯率。

(6) 貨幣兌換商可展示以外幣 10 單位或 100 單位的倍數計算的淨匯率，以及經相應調整的港元數字。

(7) 貨幣兌換商違反本條，即屬犯罪，可處第 2 級罰款及監禁 6 個月。*(編輯修訂 ——2021 年第 2 號編輯修訂紀錄)*

(由 1989 年第 9 號第 7 條代替)

7. 兌換其他貨幣

(1) 如貨幣兌換商願意進行任何一宗兌換交易，但所涉及的貨幣並非附表 3 所列其中一種，則兌換商在接受準顧客的貨幣前，須向該準顧客發出一張載列以下兩項資料的書面單據 ——

(2) If a money changer maintains more than one board displaying net rates of exchange, he shall display, on all of the boards, identical information relating to the net rates of exchange displayed.

(3) A money changer shall—

(a) provide a sufficiently large board to display the net rates of exchange in a clearly visible and legible manner to the customer; and

(b) place the board in a well lit place where the customer has an unobstructed view of the board.

(4) A money changer shall display on the board the net rate of exchange which is least favourable to the customer and may offer a net rate of exchange that is not shown on the board if the offered rate is more favourable to a customer.

(5) A money changer shall display on the board, and set out in any note issued under section 7(1), the buying and selling net rates of exchange under the headings "we buy" and "we sell" respectively.

(6) A money changer may display a net rate of exchange in multiple units of 10 or 100 units of foreign currency with a corresponding adjustment to the Hong Kong dollar figure.

(7) A money changer who contravenes this section commits an offence and is liable to a fine at level 2 and to imprisonment for 6 months. *(Amended E.R. 2 of 2021)*

(Replaced 9 of 1989 s. 7)

7. Exchange of other currencies

(1) If a money changer is prepared to enter into an exchange transaction involving a currency other than one of those set out in Schedule 3, he shall give the potential customer a note in writing of both—

(a) 他願意買入該準顧客所指定貨幣的淨匯率；及

(b) 他願意賣出該準顧客所指定貨幣的淨匯率。

(2) 第 (1) 款所提述的單據並非一張交易單據，在第 (1) 款所提述的兌換交易中，貨幣兌換商除須發出第 (1) 款所提述的單據外，並須發出一張交易單據。

(3) 貨幣兌換商違反本條，即屬犯罪，可處第 2 級罰款及監禁 6 個月。*（編輯修訂——2021 年第 2 號編輯修訂紀錄）*

（由 1989 年第 9 號第 8 條增補）

8. 宣傳匯率

(1) 凡貨幣兌換商宣傳任何貨幣的匯率，不論是以告示牌或其他方式宣傳，貨幣兌換商均須——

(a) 使每種貨幣的買入匯率及賣出匯率同樣顯眼；及

(b) 展示買入匯率及賣出匯率，展示的方式須能使準顧客可將任何貨幣的買入匯率及賣出匯率加以比較，而無須參看多於一塊告示牌。

(2) 貨幣兌換商不得宣傳——

(a) 他對兌換交易收取佣金；

(b) 他對兌換交易不收取佣金；

(a) the net rate at which he is prepared to buy the currency nominated by the potential customer; and

(b) the net rate at which he is prepared to sell the currency nominated by the potential customer,

before he accepts any currency from the potential customer.

(2) The note referred to in subsection (1) is not a transaction note and the money changer shall issue a transaction note in addition to the subsection (1) note in an exchange transaction referred to in subsection (1).

(3) A money changer who contravenes this section commits an offence and is liable to a fine at level 2 and to imprisonment for 6 months. *(Amended E.R. 2 of 2021)*

(Added 9 of 1989 s. 8)

8. Advertising rates of exchange

(1) Where a money changer advertises the rates of exchange for any currency, whether on a board or otherwise, the money changer shall—

(a) give equal prominence to buying rates and selling rates for each currency; and

(b) display the buying and selling rates in such a way that a potential customer is able to compare the buying rate with the selling rate for any currency without the need to refer to more than one board.

(2) A money changer shall not advertise—

(a) that he charges a commission on an exchange transaction;

(b) that he charges no commission on an exchange transaction;

(c) 他對兌換交易收取任何其他費用；或

(d) 他對兌換交易不收取任何其他費用。

(3) 貨幣兌換商違反本條，即屬犯罪，可處第 2 級罰款及監禁 6 個月。*（編輯修訂——2021 年第 2 號編輯修訂紀錄）*

（由 1989 年第 9 號第 8 條增補）

9. 行政長官可修訂附表

行政長官可藉憲報公告，以下列方式修訂附表——*（由 2000 年第 65 號第 3 條修訂）*

(a) 藉加入與兌換交易有關的進一步資料或各種資料，更改附表 1 所訂明的交易單據的格式；

(b) 增加或刪減附表 2 所訂明的准許陳述內的資料；及

(c) 增加或刪減附表 3 所訂明的貨幣種類。

（由 1989 年第 9 號第 8 條增補）

10. 虛假或誤導性的陳述

(1) 貨幣兌換商不得向顧客或準顧客作出關於其要約給予的匯率的虛假或誤導性陳述。

(2) 貨幣兌換商不得向顧客或準顧客作出關於——

(a) 兌換交易條款；或

(b) 本條例適用範圍，

的虛假或誤導性陳述。

(c) that he makes any other charge on an exchange transaction; or

(d) that he does not make any other charge on an exchange transaction.

(3) A money changer who contravenes this section commits an offence and is liable to a fine at level 2 and to imprisonment for 6 months. *(Amended E.R. 2 of 2021)*

(Added 9 of 1989 s. 8)

9. Chief Executive may amend Schedules

The Chief Executive may amend the Schedules by notice in the Gazette— *(Amended 65 of 2000 s. 3)*

(a) to alter the form of the transaction note prescribed in Schedule 1 by including further or different information relevant to the exchange transaction;

(b) to add or delete information which may be included in permitted statements prescribed in Schedule 2; and

(c) to add to or delete from the list of currencies prescribed in Schedule 3.

(Added 9 of 1989 s. 8)

10. False or misleading representations

(1) A money changer shall not make a false or a misleading statement as to the rate of exchange offered to a customer or potential customer.

(2) A money changer shall not make a false or a misleading statement as to—

(a) the terms of an exchange transaction; or

(b) the application of this Ordinance,

to a customer or a potential customer.

(3) 貨幣兌換商違反本條，即屬犯罪，可處第 2 級罰款及監禁 6 個月。*（編輯修訂——2021 年第 2 號編輯修訂紀錄）*

（由 1989 年第 9 號第 8 條增補）

11. 刑事法律責任

(1) 如貨幣兌換商所僱用的任何人作出某項作為，而該項作為倘由貨幣兌換商作出，根據本條例即屬犯罪，則以下每人均屬犯該罪行，猶如他是犯該罪行的貨幣兌換商一樣，而每人均可處以就該罪行而訂明的刑罰——

(a) 貨幣兌換商所僱用的上述的人；

(b) 貨幣兌換商，除非他已採取合理步驟防止該罪行發生；及

(c) 如該人的僱主是一個法團，則該法團的每名董事、經理、秘書及其他相類高級人員，以及其意是以任何該等身分行事的任何人，除非他已採取合理步驟防止該罪行發生。

(2) 除第 (3) 款另有規定外，就本條而言，如某人擔任董事職位，不論其稱號為何，或如法團的董事須按照某人的指示或指令而行事，則該人須被當作為法團的董事。

(3) 任何人不得只因法團的董事按其以專業身分給予的意見行事，而被視為是董事須按照其指示或指令行事的人。

(3) A money changer who contravenes this section commits an offence and is liable to a fine at level 2 and to imprisonment for 6 months. *(Amended E.R. 2 of 2021)*

(Added 9 of 1989 s. 8)

11. Criminal liability

(1) If a person employed by a money changer does an act which would be an offence under this Ordinance if done by a money changer, each of the following persons is guilty of that offence as if he were a money changer who had committed the offence and each person is liable to the penalty prescribed for the offence—

(a) the person employed by the money changer;

(b) the money changer, unless the money changer took reasonable steps to prevent the commission of the offence; and

(c) where the employer of the person is a corporation, each director, manager, secretary and other similar officer of the corporation and any person purporting to act in any of those capacities unless he took reasonable steps to prevent the commission of the offence.

(2) Subject to subsection (3), for the purposes of this section, a person is deemed to be a director of a corporation if he occupies the position of a director by whatever name he may be called or is a person in accordance with whose directions or instructions a director of the corporation acts.

(3) A person shall not, by reason only that a director of the corporation acts on advice given by him in a professional capacity, be taken to be a person in accordance with whose directions or instructions a director acts.

(4) 如任何合夥貨幣兌換商的合夥人犯本條例所訂罪行，則其他每位合夥人即屬犯該罪行，除非他已採取合理步驟防止該罪行發生。

(5) 凡根據本條，貨幣兌換商所僱用的任何人被當作已犯罪，則 ——

(a) 其僱主；及

(b) (如其僱主是一個法團) 該法團的每名董事、經理、秘書，以及其意是以該法團的董事、經理或秘書身分行事的人，

在無相反證據的情況下，即被推定為並無採取合理步驟防止該罪行發生。

(6) 凡與另一名貨幣兌換商合夥的貨幣兌換商犯罪，則在無相反證據的情況下，該貨幣兌換商的合夥人即被推定為並無採取合理步驟防止該罪行發生。

(由 1989 年第 9 號第 8 條增補)

(4) If a partner in a partnership of money changers commits an offence under this Ordinance, each other partner shall be guilty of the offence unless he took reasonable steps to prevent the commission of the offence.

(5) Where under this section a person employed by a money changer is deemed to have committed an offence—

(a) his employer; and

(b) where the employer is a corporation, each director, manager, secretary, person purporting to act as a director, manager or secretary of the corporation,

is presumed, in the absence of evidence to the contrary, to have not taken reasonable steps to prevent the commission of the offence.

(6) Where a money changer who is in a partnership with another money changer commits an offence, the partner of that money changer is presumed, in the absence of evidence to the contrary, to have not taken reasonable steps to prevent the commission of the offence.

(Added 9 of 1989 s. 8)

附表 1

[第 4 及 9 條]
(由 2020 年第 21 號第 66 條代替)

交易單據

貨幣兌換商姓名或名稱：.....

貨幣兌換商地址：.....

.....

貨幣兌換商電話號碼：.....

日期：.....

貨幣	款額	淨匯率	等值款額
		總額	

....

出納員簽署
代表貨幣兌換商

顧客簽署

Schedule 1

[ss. 4 & 9]
(Replaced 21 of 2020 s. 66)

Transaction Note

Money Changer's Name: .....

Money Changer's Address: .....

.....

Money Changer's Telephone No.: .....

Date: .....

Currency	Amount	Net Rate of Exchange	Equivalent Amount
		Total	

....

Cashier's Signature
for the Money Changer

Customer's Signature

(Amended E.R. 5 of 2018)

如貨幣兌換商沒有遵從《貨幣兌換商條例》(第 34 章) 的規定，顧客可於兌換交易後 3 天內取消該宗交易，並取回用以兌換以上所示等值款額的原來貨幣。

(由 1989 年第 9 號第 8 條增補)

A customer may cancel an exchange transaction within 3 days and obtain a refund of the original currency tendered in exchange for the Equivalent Amount shown above if the money changer fails to comply with the Money Changers Ordinance (Cap. 34).

(Added 9 of 1989 s. 8. Amended L.N. 171 of 1996)

附表 2

[第 4 及 9 條]
(由 2020 年第 21 號第 67 條代替)

准許陳述

交易單據可載有下列陳述 ——

對顧客沒有遵從任何國家、地區或地方有關貨幣管制的規定一事，貨幣兌換商不承擔任何責任。

在離開櫃台前，請清楚核對所有款項。

(附表 2 由 1989 年第 9 號第 8 條增補。由 1995 年第 612 號法律公告修訂；由 2025 年第 31 號第 4 條修訂)

Schedule 2

[ss. 4 & 9]
(Replaced 21 of 2020 s. 67)

Permitted Statements

A transaction note may contain the following statements—

The Money Changer accepts no responsibility for the customer's failure to comply with any country's, territory's or place's currency controls.

Please check all money before leaving the counter.

(Schedule 2 added 9 of 1989 s. 8. Amended L.N. 612 of 1995; L.N. 171 of 1996; 31 of 2025 s. 4)

附表 3

[第 6、7 及 9 條]
(由 2020 年第 21 號第 68 條代替)

訂明貨幣

下列國家、地區或地方的貨幣 ——

中國 (香港、澳門及台灣除外)
日本
加拿大
台灣
印度
印度尼西亞
美國
英國
泰國
馬來西亞
菲律賓
越南
新加坡
瑞士
歐盟
澳大利亞
韓國

(附表 3 由 1989 年第 9 號第 8 條增補。由 1995 年第 612 號法律公告修訂；編輯修訂 ——2018 年第 5 號編輯修訂紀錄；由 2025 年第 31 號第 5 條修訂)

Schedule 3

[ss. 6, 7 & 9]
(Replaced 21 of 2020 s. 68)

Prescribed Currencies

Currencies of the following countries, territories or places—

Australia
Canada
China (excluding Hong Kong, Macao and Taiwan)
European Union
India
Indonesia
Japan
Malaysia
Philippines
Republic of Korea
Singapore
Switzerland
Taiwan
Thailand
United Kingdom
United States of America
Viet Nam

(Schedule 3 added 9 of 1989 s. 8. Amended L.N. 612 of 1995; 31 of 2025 s. 5)